

23STCV04734 23STCV04734

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C07%2F28%2F2026

Source SHA-256: a0cdb0cddff3415aa82035a9e7fcb157d557407531336ae224ec3b53fe5020f7

Case Number: 23STCV04734 Hearing Date: July 28, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 17

TENTATIVE RULING

PERRY

ALAN MOLDAUER

vs.

PATEL

G. BALUBHAI, et al.

Case No.: 23STCV04734

Hearing

Date: July 28, 2026

Plaintiff's

motion to compel Defendant Patel G. Balubhai, individually and as trustee of the Balubhai G. Patel Trust, Jai Prahhu, Inc., and Rajanikant N. Patel provide verified responses to his Form Interrogatories is GRANTED. Responses are due within 5 days of entry of this order.

Defendants

are each sanctioned, jointly and severally with counsel, \$1,050, due within 15 days of entry of this order.

On

3/3/2023, Perry Alan Moldauer (Plaintiff) filed suit against Patel G. Balubhai, Patel Balubhai Trust, and Ricky Charles (collectively, Defendants), alleging: (1) tortious breach of implied warranty of habitability; (2) statutory breach of warrant of habitability; (3) breach of the covenant of quiet enjoyment; (4) intentional infliction of emotional distress; (5) nuisance; (6) negligent maintenance of premises; and (7) constructive eviction.

On

5/1/2026, Plaintiff moved for an order to compel Defendnat Patel G. Balubhai, individually and as trustee of the Balubhai G. Patel Trust, Jai Prahhu, Inc., and Rajanikant N. Patel (collectively, Defendnats) to provide verified responses to his Form Interrogatories.

Discussion

On

2/17/2026, Plaintiff served Defendants with Form Interrogatories (Set One). To date, no responses have been received.

In

a late filed opposition, Defendant's counsel indicates that he is experiencing medical issues and is mourning the loss of his next door neighbor who passed in April 2026. While the Court empathizes with counsel, Defendants have discovery responsibilities and counsel has a responsibility to relieve himself if he is unable to adequately represent Defendants.

Worryingly,

counsel does not indicate that responses have since been provided, nor does he provide any concrete indication that responses will be provided but rather offers that he "hopes" responses can be provided before the hearing. Such a response is inadequate.

Based on the

foregoing, Plaintiff's motion to compel Defendant Patel G. Balubhai,

individually and as trustee of the Balubhai G. Patel Trust, Jai Prahhu, Inc., and Rajanikant N. Patel provide verified responses to his Form Interrogatories is granted. Responses are due within 5 days of entry of this order.

Defendants

are each sanctioned, jointly and severally with counsel, \$1,050 (\$350/hr x 3 hr), due within 15 days of entry of this order.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.